

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

TANYA MENDOZA,

Petitioner

VS.

AURELIO MENDOZA JR,

Respondent

) Case Number: FDI-18-789505

) Hearing Date: July 21, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR ATTORNEY FEES AND COSTS, MOTION TO DEEM ADMITTED,  
TERMINATING OR ISSUE SANCTIONS.

**TENTATIVE RULING**

**The parties are ordered to appear in-person or via Zoom video. The Court is not currently prepared to rule on Wife's 5/18/2026 Request for Order because the Court needs to first hear from Wife regarding (a) the basis for her belief that Husband is currently using the address of PO Box 40785 San Francisco, CA 94110 and (b) the basis for her belief that Husband is currently using the email address of raymendoza2009@gmail.com. Wife is ordered to appear at the 7/21/2026 hearing to provide these explanations. Wife shall also be prepared to explain where she had the Earnings Assignment Order (filed 1/24/2019) served and where she believes Husband currently works. Wife shall further be prepared to explain whether she knows where Husband currently lives. After the Court hears Wife's explanation regarding these issues, the Court may issue additional orders regarding service and also intends to set a future hearing date for Wife's 5/18/2026 Request for Order.**

**If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.**

1 **A. Procedural History**

- 2 1) Petitioner Tanya Mendoza (Wife) and Respondent Aurelio Mendoza Jr. (Husband) married on  
3 1/25/1987 and separated on 1/12/2013, for a marriage of 24 years and 11 months. Wife is  
4 currently represented by attorney Alexander Jones. Husband is currently self-represented.
- 5 2) At the hearing on 11/6/2018, per the Findings and Order After Hearing filed 12/5/2018, Judge  
6 Darwin found that Wife “is making no income and is destitute” while Husband “is making over  
7 \$10,000 gross per month from two jobs.” The Court ordered Husband to pay Wife \$3,292 per  
8 month in temporary spousal support.
- 9 3) There have been no subsequent orders modifying or terminating the temporary spousal support  
10 order.
- 11 4) On 1/24/2019, an Earnings Assignment Order was entered for the temporary spousal support  
12 payments.
- 13 5) Per the Proof of Service filed 2/21/2019, the Earnings Assignment Order was mailed to Husband  
14 at PO Box 40785 in San Francisco, CA.
- 15 6) On 5/12/2022, the parties and their counsel entered into a Joint Stipulation to vacate a Mandatory  
16 Settlement Conference set for 5/13/2022 because, “The parties have reached an agreement and  
17 will be submitting judgment documents to the court.”
- 18 7) Following entry of the May 2022 Joint Stipulation, no Judgment was ever submitted to the Court,  
19 nor was any Judgment ever entered.
- 20 8) On 4/25/2024, Husband’s attorney filed a Motion to be Relieved as Counsel. Husband’s attorney  
21 indicated that service of her motion had been served to the client’s last known address, but  
22 Husband’s attorney was unable to confirm the address is current despite making efforts to calling  
23 Husband at his last known telephone number and emailing Husband at his last known email  
24 address.
- 25 9) Per the Proof of Service filed 4/25/2024, Husband’s attorney’s motion to be relieved as counsel  
26 was mailed to Husband at 980 Hampshire St. San Francisco, CA 94110.
- 27 10) At the 7/18/2024 hearing (per the Findings and Order After Hearing filed 8/8/2024), Judge Costin  
28 adopted her Tentative Ruling without objection and granted Husband’s attorney’s request to be  
29

1 relieved as counsel, after finding that service of Husband's attorney's moving papers had been  
2 effectuated under California Rules of Court, rule 3.1362(d)(1)(b).

3 11) On 1/2/2026, Wife filed a Motion to Compel Discovery wherein Wife states she served discovery  
4 requests on Husband and never received a response. In her motion, Wife states that she mailed  
5 her discovery requests to PO Box 40785 San Francisco, CA 94110 because she believes that is  
6 Husband's "actual address" and also emailed her discovery requests to Husband's email address  
7 raymendoza2009@gmail.com. Wife also states that Husband's discovery requests were mailed to  
8 980 Hampshire St. San Francisco, CA. However, Husband did not serve any responses. Wife  
9 mentions in her motion that she lives off of the spousal support ordered in the case.

10 12) At the 2/6/2026 hearing (per the Findings and Order After Hearing filed 2/23/2026), Judge Gold  
11 granted Wife's motion to compel and ordered Husband to provide the documents listed below.  
12 Judge Gold also ordered Husband to pay Wife \$2,040 in sanctions no later than 2/27/2026.

- 13 a. All statements for U.A. Local 467 Defined Benefit Plan and Defined Contribution Plan in  
14 the name of Respondent from January 2013 through the present day.
- 15 b. All statements for U.A. Local 38 Defined Benefit Plan and Defined Contribution Plan in  
16 the name of Respondent as of January 2013 through the present day.
- 17 c. All statements for Chase Checking Account ending in 8493 from January 2013 through  
18 September 2025.
- 19 d. All statements for Chase Checking Account ending in 9120 from January 2013 through  
20 September 2025.
- 21 e. All statements for SF Credit Union Checking Account ending in S23 from January 2013  
22 through September 2025.
- 23 f. Respondent's last three (3) filed Federal Tax returns.
- 24 g. A copy of any Deed or Document purporting to assign Respondent an interest in real  
25 property, whether in fee simple, contingent, or otherwise, from 1987 to the present day.
- 26 h. All statements for any retirement accounts in the name of Respondent (other than U.A.  
27 Local 467 and U.A. Local 38), including but not limited to any 401k, IRA and Roth IRA  
28 from January 2013 through September 2025.

- i. All statements for any life insurance (whether term or whole) from January 2013 through September 2025.

13) Now on for hearing is Wife's Request for Order filed 5/18/2026. Wife asks that the Court order terminating sanctions for Husband's non-compliance with the 2/23/2026 order and strike Husband's Response. In the alternative, Wife seeks issue sanctions against Husband so that he cannot offer or refute evidence regarding the issues of: (a) the community value of U.A. Local 467 and U.A. Local 38 Defined Benefit Plans, (b) the community value of Chase Checking Account ending in 8493, Chase Checking Account ending in 9120, and SF Credit Union Checking Account ending in S23; (c) Husband's income for spousal support and attorney fee award purposes; (d) Husband's separate property claims for any real property; (e) Husband's separate property claims for any life insurance policy. Wife also asks that her Request for Admissions Set No. 1 (summarized below) be deemed admitted. Wife further seeks \$2,200 in attorney fees be ordered paid by Husband for having to bring this request.

- a. REQUEST NO. 1: ADMIT that the entire balance of the U.A. Local 467 Defined Benefit Plan and Defined Contribution Plan held in your name, as of January 12, 2013, was community property.
- b. REQUEST NO. 2: ADMIT that the entire balance of U.A. Local 38 Defined Benefit Plan and Defined Contribution Plan held in your name, as of January 12, 2013, was community property.
- c. REQUEST NO. 3: ADMIT that the entire balance of Chase Checking Account ending in 8493 as of January 12, 2013, was community property.
- d. REQUEST NO. 4: ADMIT that the entire balance of SF Credit Union Checking Account ending in S23 as of January 12, 2013, was community property.
- e. REQUEST NO. 5: ADMIT that the current amount of spousal support, \$3,292 per month, would be an appropriate amount to be entered as a final judgment in this matter.
- f. REQUEST NO. 6: ADMIT that it would be appropriate to enter a final judgment in this matter which orders spousal support on an indefinite basis.
- g. REQUEST NO. 7: ADMIT that Petitioner Tanya Mendoza is totally disabled and so cannot be gainfully employed.

1 14) Per the Proofs of Service filed 7/8/2026, Wife's Request for Order was mailed and emailed to the  
2 following addresses on 6/18/2026. Wife states in her Request for Order that she believes that  
3 Husband's actual address is PO Box 40785 San Francisco, CA (but does not state the basis for her  
4 belief). Wife also states that she knows Husband still uses the email address  
5 raymendoza2009@gmail.com "to this day" but does not state how she knows this. Wife states  
6 that the Request for Order was mailed to the 980 Hampshire St. address because that is the  
7 address listed by Husband's former attorney in the motion to be relieved as counsel. Wife states  
8 that the Request for Order was also mailed to the 900 Hampshire St. address because that is one  
9 of the addresses listed on the Court's Proof of Service for the Findings and Order After Hearing  
10 relieving Husband's attorney (the Court notes that the 980 Hampshire St. address is also listed in  
11 that Proof of Service).

- 12 a. 900 Hampshire St. San Francisco, CA 94110
- 13 b. 980 Hampshire St. San Francisco, CA 94110
- 14 c. PO Box 40785 San Francisco, CA 94110
- 15 d. raymendoza2009@gmail.com

16 15) Husband did not file a Responsive Declaration.

## 17 **B. Findings and Order**

18 1) **The Court is not currently prepared to rule on Wife's 5/18/2026 Request for Order because**  
19 **the Court needs to first hear from Wife regarding (a) the basis for her belief that Husband**  
20 **is currently using the address of PO Box 40785 San Francisco, CA 94110 and (b) the basis**  
21 **for her belief that Husband is currently using the email address of**  
22 **raymendoza2009@gmail.com. Wife is ordered to appear at the 7/21/2026 hearing to provide**  
23 **these explanations. Wife shall also be prepared to explain where she had the Earnings**  
24 **Assignment Order (filed 1/24/2019) served and where she believes Husband currently**  
25 **works. Wife shall further be prepared to explain whether she knows where Husband**  
26 **currently lives. After the Court hears Wife's explanation regarding these issues, the Court**  
27 **may issue additional orders regarding service and also intends to set a future hearing date**  
28 **for Wife's 5/18/2026 Request for Order.**